

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MAKIBA DARBY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MITCHELL, and POLICE OFFICER "JANE DOE" a
fictitious name used to represent the unknown police
officer,

Defendants.

Index No.

Date Filed:

Plaintiff designates:

NEW YORK

County as the place of trial

The basis of venue is:

Location of occurrence.

S U M M O N S

Plaintiffs' address:

757 E 214th Street
Bronx, New York

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney, within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 1, 2021

PEÑA & KAHN, PLLC

Attorneys for Plaintiff

Office & P. O. Address

1250 Waters Place, Ste. 901

Bronx, New York 10461

(718) 585-6551

Our File No.: 08793

By: 

GARY AXISA

Defendants' Addresses:

THE CITY OF NEW YORK

100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza, Room 601A
New York, New York 10038

POLICE OFFICER MITCHELL

New York City Police Department
25th Precinct
120 E 119th Street
New York, New York 10035

**“JANE DOE” a fictitious name used to
represent the unknown police officer**

New York City Police Department
25th Precinct
120 E 119th Street
New York, New York 10035

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Defendants.

VERIFIED COMPLAINT

Plaintiff, by her attorneys, PEÑA & KAHN, PLLC, complaining of the defendants, all upon information and belief, respectfully states and alleges as follows:

FIRST CAUSE OF ACTION

1. That at all times herein mentioned, the occurrence that gave rise to this action took place in the County of New York, City and State of New York.
2. That at all times herein mentioned, the defendant THE CITY OF NEW YORK (hereinafter "CITY") was/is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was/is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That heretofore and on or about December 22, 2020, and within ninety (90) days after the claim herein sued upon arose, the plaintiff (then claimant) caused a Notice of Claim, in writing, sworn to by or on behalf of the plaintiff (then claimant) to be served upon the defendants which said Notice of Claim

set forth the name and post office address of the plaintiff (then claimant), the name of her attorneys, the nature of the claims, the times when, the places where and the manner in which the claims arose, and the items of damages or injuries claimed to have been sustained so far as then practicable.

5. That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the said Notice of Claim as aforesaid, and adjustment and payment thereof has been neglected and/or refused by the defendants.
6. That a hearing of this claim, pursuant to General Municipal Law § 50-h, has been conducted on August 17, 2021.
7. That this action is commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim herein sued upon arose.
8. That on or about September 26, 2020, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.
9. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.
10. That on said date and at all times herein mentioned, the defendant CITY managed the New York City Police Department and employed the officers of said department.

11. That on said date and at all times herein mentioned, the defendant CITY controlled the New York City Police Department and employed the officers of said department.
12. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City Police Department and employed the officers of said department.
13. That on said date and at all times herein mentioned, the defendant POLICE OFFICER MITCHELL was an officer of the New York City Police Department and employed by the defendant CITY.
14. That on said date and at all times herein mentioned, the defendant POLICE OFFICER “JANE DOE” was an officer of the New York City Police Department and employed by the defendant CITY.
15. At times mentioned herein, officers of the New York City Police Department were acting under the color of law, to wit: the laws, statutes, ordinances, rules and regulations of the City of New York, State of New York, the United States and the Constitutions of the State of New York and United States.
16. Upon information and belief, on or about September 26, 2020, at approximately 9:30 p.m. (and thereafter), employees of the City, including officers of the New York City Police Department (hereinafter “NYPD”), defendants POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE” intentionally, unlawfully, falsely, maliciously and wrongfully assaulted, battered, arrested, imprisoned, prosecuted and violated the state and federal constitutional civil rights of the plaintiff at or in the vicinity of the East

131st Street and Madison Avenue, New York, New York, and continued at the New York City Police Department 25th Precinct, 120 East 119th Street, New York, New York and in the courts, jails and prisons of the City of New York.

17. The aforesaid was committed by the defendants upon the plaintiff with her awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law.
18. The subject NYPD officers jointly and severally were acting within the scope of their employment as officers of the defendant CITY and acting under the color of law.
19. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.
20. The defendant NYPD Officers were negligently hired, trained, retained and supervised by the City.
21. The plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and still suffers and will continue for some time to come to suffer physical, emotional and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.
22. That the plaintiff continues to receive medical assistance in an effort to heal her injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.

23. As a result of the foregoing by the aforesaid the defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**SECOND CAUSE OF ACTION ON THE BASIS OF
FALSE ARREST & FALSE IMPRISONMENT**

24. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers “1” through “23” with full force and effect as though fully set forth at length herein.
25. That the defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” were acting within the scope of their employment as NYPD officers and under the color of law, when they falsely arrested and falsely imprisoned the plaintiff. The arrest and imprisonment began on about September 26, 2020, at approximately 9:30 p.m. (and thereafter) in the vicinity of the East 131st Street and Madison Avenue, New York, New York, and continued at the New York City Police Department 25th Precinct, 120 East 119th Street, New York, New York and in the courts, jails and prisons of the City of New York.
26. That on or about the aforementioned places, dates, the defendants jointly and severally in their capacity as police officers intentionally and without the right to do so, seized the person and liberty of the plaintiff: hand cuffed, arrested, confined, imprisoned and took the plaintiff into their custody.

27. The plaintiff was fully aware and conscious of the defendants' actions, including her arrest, confinement and imprisonment.
28. The plaintiff at no point consented to her arrest, confinement and imprisonment by the defendants.
29. The defendants lacked probable cause and did not have an arrest warrant to effectuate the plaintiff's arrest and imprisonment. As such, the plaintiff's arrest, confinement and imprisonment was not otherwise privileged and thus unlawful.
30. As a result of the foregoing false arrest and false imprisonment by the aforesaid defendants, the plaintiff has suffered serious, permanent physical and psychological injuries, and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**THIRD CAUSE OF ACTION ON THE BASIS OF
ASSAULT AND BATTERY**

31. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "30" with full force and effect as though fully set forth at length herein.
32. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," acting within the scope of their employment as NYPD officers and under the color of law, assaulted and battered the plaintiff.
33. That on or about the aforementioned date, time and place, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and

POLICE OFFICER "JANE DOE," were armed with loaded firearms, asps and pepper spray.

34. That on or about the aforementioned date, time and place, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," intentionally placed the plaintiff in apprehension of imminent harm and/or offensive contact.
35. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including defendants NYPD OFFICER "JOHN DOE #1" and "JOHN DOE #2, POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," intentionally caused the plaintiff to become concerned that the defendants were about to cause her harmful and/or offensive bodily contact.
36. At no time did the plaintiff consent to the aforementioned illegal actions of the defendants.
37. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," intentionally touched, made harmful, offensive and bodily contact with the plaintiff.
38. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," intentionally touched, made harmful, offensive and/or bodily contact with the plaintiff, and said touching was done with excessive force.

39. That on or about the aforementioned dates, times and places, the plaintiff neither resisted arrest nor attempted to escape.
40. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," used unreasonable and excessive force in effectuating the plaintiff's arrest.
41. At no time did the defendants have legal cause to intentionally touch, make harmful, offensive and/or bodily contact with the plaintiff.
42. At no time did the plaintiff consent to this illegal harmful, offensive and bodily contact nor was it privileged by law.
43. That on or about the aforementioned dates, times and places, officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," used excessive force and used such force without the plaintiff's consent.
44. As a result of the foregoing assault and battery by the aforesaid defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," the plaintiff has suffered serious, permanent physical and psychological injuries, and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

FOURTH CAUSE OF ACTION ON THE BASIS OF

INTENTIONAL TORT

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this complaint numbered “1” through “44” with the same force and effect as if the same were herein fully set forth.
46. Upon information and belief, on or about September 26, 2020, at approximately 9:30 p.m. (and thereafter), employees of the City, including officers of the NYPD, defendants POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE” intentionally, unlawfully, falsely, maliciously and wrongfully battered, sexually assaulted, sexually humiliated, and conducted outrageous acts upon the plaintiff at or in the vicinity of the East 131st Street and Madison Avenue, New York, New York, and continued at the New York City Police Department 25th Precinct, 120 East 119th Street, New York, New York while other Police Department officers, including members of the opposite sex, stood by, watched and took no action to prevent or stop these actions.
47. That on or about said date, the plaintiff was caused to be injured after being assaulted by defendants POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” who were permitted to act in a malicious, violent and criminal manner due to the inadequate and improper supervision and security thereat, due to the negligence of defendant CITY.
48. That on said date, defendants allowed MAKIBA DARBY to be assaulted.
49. That said assault was not in any way induced by MAKIBA DARBY, nor did she provoke said assault.

50. That by reason of the foregoing assault, MAKIBA DARBY sustained severe injuries to various parts of her body; that she suffered and will continue to suffer for some time to come great pain and anguish in body and mind; that she received necessary hospital care and attention for a long period of time; that she necessarily received and will continue to receive medical treatment and medicines for which expenses have, are and will continue to be incurred; that as a result of the injuries she sustained, she may require future hospital and medical care and attention; that she has been unable to return to the usual duties and occupation she had theretofore done, and, upon information and belief, her injuries are permanent, protracted and disabling in nature, all to her and the plaintiff's damages as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**FIFTH CAUSE OF ACTION ON THE BASIS OF
MALICIOUS PROSECUTION**

51. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "50" with full force and effect as though fully set forth at length herein.
52. The defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," were acting within the scope of their employment as NYPD officers, intentionally and maliciously initiated and actively continued a criminal judicial proceeding against the plaintiff without probable cause.

53. The defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," while acting within the scope of their employment as NYPD officers without good faith and without reasonable grounds, initiated and actively continued a criminal judicial proceeding against the plaintiff.
54. The defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," acting within the scope of their employment as NYPD officers, initiated and actively continued a criminal judicial proceeding against the plaintiff out of ill will and for a purpose of other than seeking justice.
55. The above mentioned criminal judicial proceeding commenced by the defendants against the plaintiff, terminated in MAKIBA DARBY'S favor.
56. As a result of the foregoing malicious prosecution by the aforesaid defendants, the plaintiff has suffered serious, permanent physical and psychological injuries, and has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

SIXTH CAUSE OF ACTION ON THE BASIS OF
CONSTITUTIONAL CIVIL RIGHTS VIOLATIONS
PURSUANT TO
42 UNITED STATES CODE 1983

57. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers "1" through "56" with full force and effect as though fully set forth at length herein.

58. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," acting within the scope of their employment as NYPD officers, while armed and effectuating the arrest and seizure of the plaintiff, did search, assault, commit a battery and restrain her without probable cause, a court authorized search warrant and/or arrest warrant. The defendants physically seized the person and liberty of the plaintiff unlawfully and with the use of excessive force.
59. That on or about the aforementioned dates, times and places, the defendants jointly and severally in their capacity as officers of the defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," acting within the scope of their employment as NYPD officers, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:
- a. Freedom from assault;
 - b. Freedom from battery;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;

- f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from summary punishment;
 - i. Freedom from cruel and unusual punishment;
 - j. Freedom from loss of liberty; and
 - k. Freedom from illegal search.
- 60. The defendant CITY, including defendants POLICE OFFICER MITCHELL and POLICE OFFICER "JANE DOE," subjected the plaintiff to such deprivations, either in a malicious or reckless disregard for the plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
- 61. The direct and proximate result of the defendants' acts are that the plaintiff has suffered severe and permanent injuries of a physical and psychological nature. she was forced to endure pain and suffering, all to her detriment.
- 62. That by reason of the foregoing, the plaintiff is entitled to full cost of attorney's fees and costs incurred in prosecuting this action.
- 63. That by reason of the foregoing, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

**SEVENTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT HIRING**

64. Plaintiff repeats, reiterates and re-alleges each and every allegation set forth in paragraph numbers “1” through “63” with full force and effect as though fully set forth at length herein.
65. Upon information and belief, the defendant CITY was negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officers who committed the aforementioned acts and deprivations on the plaintiff on or about the aforementioned dates, times and places.
66. Prior to said date, and at all times herein mentioned, the defendant CITY failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral, negligent and reckless.
67. Prior to said date, and at all times herein mentioned, the defendant CITY failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officers, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.
68. Prior to said date, and at all times herein mentioned, the defendant CITY failed its duty to know that the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, possessed vicious propensities.

69. Prior to said date, and at all times here mentioned, the defendant CITY had knowledge of facts about the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above stated information about the employees and failed to do so.
70. As a result of the foregoing negligence and lack of due care by the defendant CITY, its agents, servants and/or employees, the plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

**EIGHTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT TRAINING**

71. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs “1” through “70” with full force and effect as though set forth at length herein.
72. Defendant CITY has grossly failed to train and adequately supervise its police offices, including POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

73. Defendant CITY was negligent by failing to implement a policy with its Police Department and instruct police officers, including POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” who, absent the consent of the plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest and/or search warrant, said police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
74. Defendant CITY is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
- A. Probable cause must be present before an individual such as the plaintiff herein can be arrested;
 - B. Force cannot be used against an individual who does not physically resist arrest or attempt to escape; and
 - C. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
75. The foregoing acts, omissions and systemic failures are customs, practices and policies of the defendant CITY which caused the police officers, including POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” to falsely arrest, maliciously prosecute, illegally seize and search the plaintiff

commit an assault/battery, outrageous conduct and sexual humiliation to her person and deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**NINTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT SUPERVISION**

76. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs “1” through “75” with full force and effect as though set forth at length herein.
77. Defendant CITY was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the NYPD OFFICER defendants, including POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” defendant CITY knew or should have known of the bad disposition of POLICE OFFICER MITCHELL and POLICE OFFICER “JANE DOE,” or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the defendants CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force, outrageous conduct, assault, battery and sexual humiliation during the arrest process.
78. That by reason of the foregoing, the plaintiff sustained grievous personal injuries to various parts of the body; suffered and will continue to suffer great loss of dignity, humiliation, pain and anguish in body and mind; suffered loss

of liberty; that the plaintiff has received necessary hospital and medical attention by reason of the injuries sustained; that the plaintiff have necessarily received, is receiving and will continue to receive medical care and treatment in connection with the injuries suffered by him, and in connection with which expenses have, are and will continue to be incurred; that the plaintiff has been greatly incapacitated and has been unable to attend to her usual duties as she had theretofore done, and the plaintiff's injuries are permanent, protracted and disabling in nature, all to the plaintiff's damage as against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York.

TENTH CAUSE OF ACTION ON THE BASIS OF
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

79. The plaintiff repeats, reiterates and realleges each and every allegation in the complaint contained herein, as designated in paragraphs hereof marked "1" through "78" inclusive, with the same force and effect as if more fully and completely set forth at length herein.
80. That the defendants, their agents, servants and/or employees, knew or reasonably should have known that the conduct described herein would and did proximately result in physical and emotional distress to the plaintiff MAKIBA DARBY.
81. That at all relevant times, the defendants, their agents, servants and/or employees, had the power, ability, authority, and duty to stop engaging in the

conduct described herein and/or to intervene to prevent or prohibit said conduct

82. That defendants, their agents, servants and/or employees, knew or should have known that the failure to properly act would and in fact did cause plaintiff MAKIBA DARBY to suffer severe emotional distress.
83. That the defendants, their agents, servants and/or employees negligently failed to act to stop, prevent and/or prohibit the negligent, improper, unlawful and egregious conduct described hereinabove, thus resulting in plaintiff MAKIBA DARBY suffering severe emotional distress.
84. That as a result of the negligent infliction of emotional by the defendants, their agents, servants and/or employees, the plaintiff MAKIBA DARBY sustained serious and severe damage, harm and injuries, and was caused to suffer severe and significant conscious pain and suffering, including psychological suffering, emotional suffering and emotional distress, mental anguish and loss of enjoyment of life, and has incurred medical expenses and other economic damages and loss, and will continue to experience and incur these damages and losses in the future.
85. That as a result of the aforementioned, plaintiff MAKIBA DARBY, has sustained damages against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York.

WHEREFORE, the plaintiff demand judgment in each cause of action against the defendants in a sum which exceeds the jurisdictional limits of all lower courts of the State of New York, and in an amount which satisfies diversity jurisdiction of the Federal Courts pursuant to 28 USCA § 1441 and 1331, together with the costs and disbursements of this action.

Dated: Bronx, New York
November 1, 2020

Yours, etc.

PEÑA & KAHN, PLLC
Attorneys for Plaintiff
Office & P. O. Address
1250 Waters Place, Ste. 901
Bronx, New York 10461
(718) 585-6551
Our File No.: 08793

By: _____

GARY AXISA

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF BRONX)

MAKIBA DARBY, being duly sworn, says:

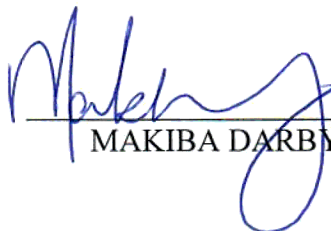
I am the plaintiff in the within action; I have read the foregoing

COMPLAINT

and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true.

Dated: Bronx, New York

November 5th 2021



MAKIBA DARBY

STATE OF NEW YORK, COUNTY OF BRONX ss.:

On November 5th, 2021, before me personally came MAKIBA DARBY, to me known, and known to me to be the individual described in, and who executed the foregoing **VERIFICATION**, and duly acknowledged to me that (s)he executed the same.



NOTARY PUBLIC
FRANCES CUADRADO
Commissioner of Deeds, City of New York
No.: 3-7418
Cert. Filed in Bronx County
Commission Expires 3/1/24

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

MAKIBA DARBY,

Plaintiff,

-against-

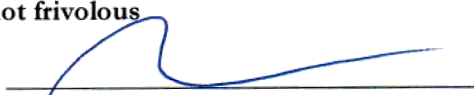
THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER MITCHELL, and POLICE OFFICER "JANE DOE" a fictitious name used to
represent the unknown police officer,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

PEÑA & KAHN, PLLC
Attorneys for Plaintiff
Post Office Address and Telephone
1250 Waters Place, Suite 901
Bronx, New York 10461
Tel: (718) 585-6551
Fax: (718) 585-6618

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of
New York State, certifies that, upon information and belief and reasonable inquiry, the
contentions contained in the annexed document are not frivolous



GARY AXISA, ESQ.
PEÑA & KAHN, PLLC

☐ Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

☐ Notice of Settlement

that an order
will be presented to the Hon.

of which the within is a true copy
one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

PEÑA & KAHN, PLLC
1250 Waters Place, Suite 901
Bronx, New York 10461